

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #02	CCRB Case #: 201607657	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/04/2016 8:23 PM	Location of Incident: § 87(2)(b)		18 Mo. SOL 3/4/2018		Precinct: 33
Date/Time CV Reported Mon, 09/05/2016 11:20 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 09/05/2016 11:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An Officer			033 PCT
2. POM Eddy Gutierrez	12755	925406	033 PCT
3. POM Steve Tirado	22659	900684	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Damien Fogarty	682	956652	033 PCT
2. POM Hotoniel Diaz	16543	957540	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eddy Gutierrez	Discourtesy: Police Officer Eddy Gutierrez spoke discourteously to § 87(2)(b).	A . § 87(2)(g)
B . POM Steve Tirado	Discourtesy: Police Officer Steve Tirado spoke discourteously to § 87(2)(b).	B . § 87(2)(g)
C . An Officer	Discourtesy: An officer spoke discourteously to § 87(2)(b).	C . § 87(2)(g)
D . POM Eddy Gutierrez	Other: There is evidence suggesting Police Officer Eddy Gutierrez provided a false official statement in violation of Patrol Guide Section 203-08.	D . § 87(2)(g)

Case Summary

On September 5, 2016, § 87(2)(b) filed this complaint via the Call Processing System. It was assigned to Investigator Griffin Sherbert on September 9, 2016, and reassigned to Investigator Matthew Chaves on October 4, 2016.

At approximately 8:23 p.m. on September 4, 2016, officers arrived outside of the Fort Washington Men's Shelter § 87(2)(b) in Manhattan in response to § 87(2)(b)'s 9-1-1 calls. § 87(2)(b) had been robbed the night before and had called 9-1-1 to file a report. § 87(2)(b) spoke to Police Officers Eddy Gutierrez and Steve Tirado of the 33rd Precinct, along with a third, unidentified police officer. The three officers variously referred to § 87(2)(b)'s complaint as "bullshit" and told § 87(2)(b) that they "were not writing shit" and were "not writing a fucking report" (**Allegations A, B, and C**). Also present were Police Officers Damian Fogarty and Hotoniel Diaz of the 33rd Precinct. Neither Police Officer Fogarty nor Diaz spoke to § 87(2)(b) during the incident.

No arrests were made or summonses issued during this incident. There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation on September 20, 2016, but rejected it § 87(2)(b)
- A search for a Notice of Claim filed in regard to this incident was requested from the New York City Comptroller's Office and the result will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 02).
- Police Officer Gutierrez has been a member of the NYPD for 16 years and has had 23 prior CCRB allegations against him in 10 cases with one substantiated allegation. In CCRB case #200515363, Police Officer Gutierrez had an allegation of discourtesy substantiated with charges. He received instructions in regards. Police Officer Gutierrez has five prior allegations of discourtesy. One allegation was substantiated, three were unsubstantiated, and one was withdrawn.
- Police Officer Tirado has been a member of the NYPD for 24 years and has had eight prior CCRB allegations against him in four cases with one substantiated allegation. In CCRB case #9804353, Police Officer Tirado had an allegation of a frisk substantiated. He received a command discipline in regards. § 87(2)(g)

Potential Issues

- This incident occurred at the § 87(2)(b), a homeless shelter operated by the New York City Department of Homeless Services (DHS). The shelter has its own on-site officers, who wear uniforms which are similar to those of NYPD officers. § 87(2)(b) who was familiar with the DHS officers stationed at the incident location, made no allegations against these officers, and stated that they were not present when the allegations he made against NYPD officers occurred.
- A subpoena was issued to the DHS legal office on October 18, 2016, requesting any documents related to this incident, personnel records for the day of the incident, and any video footage of the incident (Board Review 03). As of the date of this report, DHS has not responded to this subpoena. § 87(2)(g)
- § 87(2)(b) alleged that Police Officer Eddy Gutierrez refused to take his criminal complaint. § 87(2)(g)
- § 87(2)(g)
- § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

- According to 9-1-1 system records (Board Review 05), officers assigned to Sectors A and D responded to this incident. According to the 33rd Precinct Roll Call for September 4, 2016 (Board Review 06), Police Officers Gutierrez and Tirado were assigned to Sector D, and Police Officer Fogarty and Police Officer Kevin Cully of the 33rd Precinct were assigned to Sector A (though it was discovered via officer interview that Police Officer Cully swapped with Police Officer Diaz prior to this incident). Police Officers Gutierrez and Tirado both acknowledged speaking to § 87(2)(b) during this incident, and both matched descriptions provided by § 87(2)(b) for two of the three officers who spoke discourteously to him. Neither PO Fogarty nor PO Diaz fit the description of the third officer, and both acknowledged being present but denied speaking to § 87(2)(b).
- § 87(2)(b) stated that a third officer spoke discourteously to him. § 87(2)(b) described this officer as either “Filipino” or “Asian.” According to the 33rd Precinct Tour 3 Roll Call for September 4, 2016, the only Asian officer assigned that tour was Police Officer Nan Chen. Police Officer Chen’s memo book, however, indicates that he was sick on September 4, 2016, and did not report for duty. All four officers identified as having been present stated that they were the only four officers present for this incident. § 87(2)(b)

Allegation A -Discourtesy: Police Officer Eddy Gutierrez spoke discourteously to § 87(2)(b)

Allegation B -Discourtesy: Police Officer Steve Tirado spoke discourteously to § 87(2)(b)

§ 87(2)(b) provided a telephone statement to the CCRB on September 12, 2016 (Board Review 04). § 87(2)(b) was interviewed at the CCRB on September 20, 2016. Police Officer Gutierrez was interviewed at the CCRB on October 17, 2016. Police Officer Tirado was interviewed at the CCRB on October 17, 2016. Police Officer Fogarty was interviewed at the CCRB on October 19, 2016. Police Officer Cully was interviewed at the CCRB on October 19, 2016. Police Officer Diaz was interviewed at the CCRB on October 26, 2016.

It is undisputed that Police Officers Gutierrez, Tirado, Fogarty, and Diaz responded to § 87(2)(b)'s 9-1-1 call, and that Police Officer Gutierrez spoke with § 87(2)(b) about the alleged robbery of § 87(2)(b)'s money. However, the tone and nature of this conversation, along with the persons present, are in dispute.

§ 87(2)(b) stated that at approximately 3 a.m. on September 4, 2016, he was robbed of \$1800 while sleeping at the § 87(2)(b). While § 87(2)(b) did not provide a consistent timeline of when he called 9-1-1 or when officers responded, 9-1-1 system records indicate that § 87(2)(b) called 9-1-1 at 6:51 p.m., 7:32 p.m., 8:13 p.m., and 8:29 p.m. the same day.

§ 87(2)(b) stated that six NYPD officers responded together to his 9-1-1 calls and were present during this incident. § 87(2)(b) only spoke with three of these officers. In addition to the NYPD officers who responded, § 87(2)(b) stated that there were two DHS officers present during the incident, though they were not outside with § 87(2)(b) and the NYPD officers at the time the discourteous statements were made.

§ 87(2)(b) stated that Police Officer Gutierrez listened to his description of the robbery and responded by saying that the complaint was “bullshit.” Police Officer Gutierrez also said, “I’m not making no fucking report. I’m not writing shit.” § 87(2)(b) and Police Officer Gutierrez continued to debate whether or not the officers were required to take § 87(2)(b) complaint, prompting two other officers, including Police Officer Tirado, to tell § 87(2)(b) that they “weren’t writing shit.”

In their statements to the CCRB, Police Officers Gutierrez and Tirado both stated that when they approached § 87(2)(b) that he appeared intoxicated. Both officers described the smell of alcohol on § 87(2)(b) breath, along with a “belligerent” demeanor. Police Officer Gutierrez believed § 87(2)(b) complaint was lacking in credibility because of the fact that § 87(2)(b) description of the robbery varied under questioning, that it was unlikely for someone possessing thousands of dollars in cash to be residing in a homeless shelter, and that § 87(2)(b) waited an entire day before calling the police about an ostensibly significant crime. Based on these inconsistencies, Police Officer Gutierrez decided not to make a report of § 87(2)(b) complaint. According to all four officers interviewed, Police Officer Gutierrez maintained a calm tone when speaking with § 87(2)(b).

§ 87(2)(b) and did not use any profanity. All four officers denied using profanity with § 87(2)(b) or hearing any officer use profanity.

§ 87(2)(g)

t. All four officers indicated that Police Officer Gutierrez primarily spoke to § 87(2)(b). Police Officers Fogarty and Diaz stated that since they were simply “backing up” Police Officers Gutierrez and Tirado in responding to this incident, that they did not stay on scene for more than a few minutes and that neither of them spoke to § 87(2)(b). None of the officers interviewed described other officers, either from the NYPD or DHS, as being present during the incident.

§ 87(2)(g)

Allegation C -Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(g)

Allegation D –Other: There is evidence suggesting Police Officer Eddy Gutierrez provided a false official statement in violation of Patrol Guide Section 203-08.

On September 21, 2016, the CCRB requested Police Officer Eddy Gutierrez's memo book entries from September 4, 2016 from the 33rd Precinct. A copy of these memo book entries were received by the CCRB on October 11, 2016 (Board Review 06 and Board Review 10).

On October 17, 2016, Police Officer Gutierrez was interviewed as a subject officer. During the initial phase of the interview, Police Officer Gutierrez provided another copy of his memo book entries from September 4, 2016 (Board Review 07), and read these entries into the interview audio recording. The text of these entries differed from that in the copy provided by the 33rd Precinct on October 11, 2016, and appeared to contain more detail. When asked on what date he made the entries that he was reading, Police Officer Gutierrez said that they were made on September 4, 2016. At the end of the interview, however, Police Officer Gutierrez was shown the previously received version of his memo book, and asked to account for the differences. Police Officer Gutierrez then acknowledged that he had added text to his memo book a few days prior to the interview, in response to receiving his notification of his CCRB interview scheduling.

Patrol Guide Section 203-08 (Board Review 08) states that intentionally making a false official statement is prohibited, including during an interview conducted pursuant to a CCRB investigation or in an official document or report (such as a memo book).

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad: 2

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date